SUMMARY PLAN DESCRIPTION

Associate Savings Plan

Describes the terms of the Plan in effect as of January 1, 2024

CAPITAL ONE FINANCIAL CORPORATION

Benefits are an important part of your total rewards from Capital One. Our goal is to provide a comprehensive, balanced and competitive benefits program that offers flexibility and choice. Our benefits are intended to help you Be Well physically, financially, and emotionally.

The benefits program offers the opportunity for every regular, full-time and part-time associate of Capital One (as defined in "Eligibility" on page) to participate in the Capital One's 401(k) plan, the Capital One Financial Corporation Associate Savings Plan (the "Associate Savings Plan" or the "Plan"). The Associate Savings Plan helps reward you for the value you bring to Capital One, and provides a way for you to plan and save for your financial future.

This Summary Plan Description (SPD) is intended to help you understand the terms of the Plan and use the Plan's benefits most effectively. This SPD is designed to be easy to use — whether you read it cover to cover or simply use it as a reference when you have a specific question. We hope this helps you locate the information you need quickly and makes it easy to understand.

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Important Information About This SPD

This is the Summary Plan Description ("SPD") for the Capital One Financial Corporation Associate Savings Plan (the "Plan"). The SPD describes the terms of the Plan as of January 1, 2024.

This SPD describes benefits under the Plan and obligations as contained in the legal plan documents, which govern the operation of the Plan. The plan document is written in much more technical and precise language. If the non-technical language under this SPD and the language of the plan document conflict, the plan document governs.

This SPD describes the current provisions of the Associate Savings Plan, and is designed to comply with applicable legal requirements, including qualifying under Section 401(a) of the Internal Revenue Code. The Plan is subject to federal laws, such as the Employee Retirement Income Security Act (ERISA), the Internal Revenue Code and other federal and state laws which may affect your rights. The provisions of the Plan are subject to revision due to a change in laws or due to pronouncements by the Internal Revenue Service (IRS) or Department of Labor (DOL). Capital One Financial Corporation ("Capital One") also reserves the right to amend or terminate the Plan or any employee benefit plan at any time, and for any reason. If the material provisions of the Associate Savings Plan described in this SPD change, Capital One will notify you.

Neither this SPD nor the policies and procedures contained herein constitute an employment contract. This means that no promise of any kind is intended by the benefits described in this SPD. Nothing in the SPD or the Plan gives, or is intended to give, any person the right to be retained in the employment of Capital One, or to interfere with the right of Capital One to terminate the employment of any person.

Prospectus

This SPD constitutes part of a prospectus covering securities that have been registered under the Securities Act of 1933, as amended (the "Securities Act"). This prospectus relates to shares of Capital One Financial Corporation common stock listed on the New York Stock Exchange under the symbol "COF." The date of this prospectus is May 14, 2024.

Capital One has not authorized any other person to provide you with any information different from, or in addition to, or to make any representations other than those contained in this prospectus or incorporated by reference in this prospectus in connection with the offer contained in this prospectus. If given or made, you must not rely upon any such information or representation as having been authorized by Capital One. Capital One takes no responsibility for, and can provide no assurance as to the reliability of, any other information that others may give you. This prospectus is not an offer to sell or a solicitation of an offer to buy any of the securities offered by this prospectus, nor will there be any sale of these securities by anyone, in any state in which such an offer, solicitation or sale would be not permitted. You should assume that the information appearing in this prospectus and the documents incorporated by reference herein and therein, is accurate only as of their respective dates. Capital One's business, financial condition, results of operations and prospects may have changed since those dates.

Capital One does not undertake any obligation to update the information as a result of new information, future events or otherwise.

NOTICE

NEITHER THE SECURITIES AND EXCHANGE COMMISSION (THE "SEC") NOR ANY STATE SECURITIES COMMISSION HAS APPROVED OR DISAPPROVED OF THESE SECURITIES OR PASSED UPON THE ACCURACY OR ADEQUACY OF THIS DOCUMENT. ANY REPRESENTATION TO THE CONTRARY IS A CRIMINAL OFFENSE.

Benefits at a Glance

Your Associate Savings Plan account consists of some or all of the following:

- Your Pre-Tax Elective Deferrals and/or Roth Elective Deferrals
- Any contributions Capital One makes on your behalf
- Any investment gains (or losses) on these amounts

Plan Feature	How it Works
Eligibility	If you are at least age 18, you are automatically eligible to participate in the Associate Savings Plan upon your hire date.
Your Contributions	You may contribute up to 50% of your eligible pay on a pre-tax and/or Roth basis, up to certain IRS annual limits. In addition, if you are age 50 or older by the end of the plan year, you are eligible to make catch-up contributions to the Plan.
Capital One Contributions	Capital One can contribute to your account in two ways: ▪ **3% Basic Non-Elective Company Contribution:** Each pay period Capital One will make a contribution equal to 3% of your eligible pay. You will receive this contribution regardless of whether you are actively contributing to the Plan. ▪ **Matching Company Contributions:** When you contribute to the Plan through Pre-Tax Elective Deferrals and/or Roth Elective Deferrals, Capital One will match your contributions as follows: – 100% of the first 3% of your pay you defer. – 50% of the next 3% of pay you defer. The maximum Matching Company Contribution you are eligible to receive is equal to 4.5% of your pay. You must contribute at least 6% of your pay to receive the maximum Matching Company Contribution.
Investing Your Account	You can invest in a variety of investment options offered through the Plan. If you do not provide an investment election, your plan contributions will be invested in the LifePath Fund that corresponds to your anticipated retirement date.

Special Rules for Participants in Merged Plans

Over time, the following savings plans have been merged into the Associate Savings Plan:

- Summit 401(k) Savings Plan (effective January 1, 1999)
- Amerifee, LLC Retirement Plan (effective January 1, 2003)
- Onyx Acceptance Corporation 401(k) Plan (effective January 17, 2006)
- North Fork Bancorporation, Inc. Retirement Savings Plan (effective January 1, 2008)
- Hibernia Corporation Retirement Security Plan (effective January 1, 2008)
- ING Direct 401(k) Savings Plan (effective December 31, 2012)
- ING Direct Pension Plan (effective December 31, 2012)
- Beech Street Capital, LLC 401(k) Plan (effective December 31, 2013)

If you formerly participated in any of these plans, special rules may apply to amounts transferred from your prior plan into the Associate Savings Plan. For example, transferred amounts will be subject to the vesting provisions of your prior plan, while amounts you earn under the Associate Savings Plan will be subject to the plan provisions described in this SPD.

Previous ING DIRECT Pension Plan Participants

There are special rules applicable to amounts previously contributed to the ING DIRECT Pension Plan (e.g., benefits are paid in the form of an annuity unless you affirmatively elect a lump sum (with spousal consent if you are married) and plan loans and hardship withdrawals are not available with respect to those amounts).

For information on the special rules that apply to you, contact Fidelity at 800-854-4015 or log on to www.netbenefits.com.

Eligibility and Participation

Eligibility

You are eligible for the Associate Savings Plan if you are at least 18 years of age and are a full-time or part-time associate of Capital One or an affiliate that has adopted the Plan.

You are not eligible to participate in the Plan if you are:

- A non-U.S. resident (for example, you are hired outside the U.S. to work outside the U.S.);
- A leased employee;
- A temporary employee (including summer interns and cooperative education student employees);
- Hired outside the United States by a Capital One employer primarily to perform functions with respect to operations of that employer maintained outside the United States; or
- An independent contractor.

When Your Participation Begins

You are eligible to begin participating in the Associate Savings Plan on your first day of work. This means you are eligible to receive the Capital One Basic Non-Elective Contribution, make Associate Elective Contributions and receive the Company Matching Contribution on your deferrals.

Shortly after your hire date (or eligibility date) you will be sent an enrollment packet by Fidelity, the Plan's record keeper. You may also request an enrollment packet by calling Fidelity at 800-854-4015.

How to Enroll

Unless you opt out of participation within 60 days of your hire date, by logging into NetBenefits or calling Fidelity to set your elections to zero, you will:

- Automatically be enrolled in the Plan at a 3% Associate Elective Contribution rate, and
- Have your contributions automatically be invested in the LifePath Fund that corresponds to your anticipated retirement date.

If you wish to contribute a different amount and/or elect Roth contributions, make investment elections, or choose not to participate, you should update your elections directly through Fidelity:

- Online: www.netbenefits.com
- Telephone: 800-854-4015

After you complete the enrollment process with Fidelity:

- The Associate Elective Deferrals and Matching Company Contributions will begin within one to three pay cycles following your enrollment, or as soon as administratively feasible following your enrollment.
- The 3% Basic Non-Elective Company Contributions will automatically begin as soon as administratively feasible following your date of hire.

How to Opt-Out

If you do not want to participate in Associate Elective Deferrals and receive Matching Company Contributions, you must log on to Fidelity's website (www.netbenefits.com) or call the Capital One Retirement Savings Service Center at 800-854-4015 within 60 days of your hire date and request your contribution election be changed to 0%. Changes may take up to three pay cycles following the date of the request. If you do not want to participate but contributions are made before you change your contribution election to 0%, those funds must remain in the Plan. A refund of contributions is not permitted.

Remember, even if you opt-out of Associate Elective Deferrals, you will still receive an automatic 3% Basic Contribution from Capital One if you are eligible for the Plan. Your Basic Contributions will be invested in the appropriate LifePath Fund unless you direct otherwise.

Naming a Beneficiary

When you enroll, you should name a beneficiary for your plan account. Your beneficiary will be able to receive your account balance in the unfortunate event of your death.

If you do not have a valid beneficiary election on file, your beneficiary is determined based on your marital status at the time of your death.

- If you are married, your beneficiary will be your spouse as defined under applicable state law.
- If you are not married, your beneficiary will be your estate.

You can name or change your beneficiary at any time by calling Fidelity at 800-854-4015, or by logging on to www.netbenefits.com. If you are married and want to name a beneficiary other than your spouse, the law requires your spouse must approve your election in writing and that his or her approval must be certified by a public notary.

Account Information

As a plan participant, you will receive quarterly statements that detail all the contributions made to your account during the prior quarter, including any investment gains (or losses) or any fees assessed to your account. In addition, if you make changes to your account at any time (for example, if you change your contribution rate or investment mix), you will receive a confirmation statement from Fidelity by email (if you have an email address on file) or via the mail.

You can also track the daily value of your Fidelity account using the Fidelity app, logging on to www.netbenefits.com, or by calling 800-854-4015. You will need your user ID and PIN to access the website.

First Time User?

Log on to www.netbenefits.com and follow the prompts to set up your account. Your user ID and PIN is your personal access to your account and is considered as your signature for confirming all plan transactions, including transfers, loans, withdrawals, etc. Be sure to keep your user ID and PIN in a safe and secure place and do not share with others.

Your Personal Information

It is important to keep your address information up to date with the Plan even after your employment with Capital One ends and you leave your account balance in the Plan. Your current address is used for all plan correspondence, including confirmation of all plan transactions (transfers, withdrawals, etc.) and changes to your PIN. If you leave your account balance in the Plan after you leave Capital One, be sure to contact Fidelity at 800-854-4015 or log on to www.netbenefits.com ~~provide~~ and update your address information so you always have the most current address on file.

Contributions

To help you reach your retirement savings goals, both you and Capital One can contribute to your account under the Associate Savings Plan, as described in the following sections.

Please note that the IRS places a limit on the total contributions that may be made to your account in any given year. This limit includes the contributions you make to the Plan as well as any contributions you receive from Capital One. In 2024, this limit is the lesser of 100% of your compensation (as defined under IRS rules) or $69,000. This amount may be adjusted on an annual basis by the IRS.

Your Contributions

As a participant in the Associate Savings Plan, you may contribute in increments of 1%, up to a maximum of 50% of your eligible pay. You may make Associate Elective Deferrals on a pre-tax basis, a Roth (post-tax) basis, or a combination of both.

You can log in to www.netbenefits.com or call 800-854-4015 at any time to increase, decrease, stop, or restart your own contributions to the Plan.

Each year the IRS limits how much money you can personally contribute to the Plan. In 2024, the elective contribution limit for associate elective and/or Roth contributions is $23,000. If you are age 50 or older in 2024, you can contribute an additional $7,500 in “catch-up” elective deferrals (for more information about catch-up contributions, see “Catch-Up Contributions” on page). These amounts may be adjusted on an annual basis by the IRS.

Eligible Pay

For plan purposes, your eligible pay includes your base salary, as well as any bonuses, commissions, incentives and overtime you earn.

Your eligible pay does not include:

- Front-End Bonus, Retention Bonus, Special Cash Bonus, Staff Referral Bonus, & Cash Awards
- Severance pay
- Equity-based compensation (including long-term incentives)
- Contributions from Capital One made to this plan or any other deferred compensation plan
- Reimbursements or expense allowances (such as moving expenses, car expenses, tuition reimbursement and meal allowances)
- Fringe benefits (cash and non-cash)
- Welfare benefits, or any benefits from external sources (such as state paid family leave)

In 2024, your eligible pay is limited to $345,000. This amount may be adjusted on an annual basis by the IRS.

Please refer to the IRS [401(k) contribution limits] for the most current contribution and compensation limits.

Associate Elective Contributions

Pre-Tax Contributions

When you contribute to the Associate Savings Plan on a pre-tax basis, you are not only saving for the future, but also deferring your taxes. Because your contributions are made before federal, state and local taxes are taken out, this reduces the amount of your take-home pay used to determine your tax obligation.

For example, the following table shows the annual tax savings for a single associate earning $50,000 a year. In this case, it is assumed that this associate pays a 20% marginal federal income tax rate.

Associate Elective Contribution Rate

	0%	3%	6%	10%
Associate elective contribution	$0	$1,500	$3,000	$5,000
Taxable income	$50,000	$48,500	$47,000	$45,000
Take home pay	$40,000	$38,800	$37,600	$36,000
Actual "cost" of saving	N/A	$1,200	$2,400	$4,000

This example does not include tax savings based on state and local income taxes that may apply. In addition, the example makes certain assumptions about the associate's tax filing status and tax bracket. Please consult your own financial advisor for more detailed information.

Roth Contributions

Roth contributions are not taken from your paycheck on a pre-tax basis. Instead, these contributions are made in after-tax dollars (after federal, state and/or local taxes have been withheld).

Roth contributions and any earnings on those amounts may be distributed to you tax free when you withdraw them from the Plan at a later date. To receive these amounts tax free, your contributions must first meet certain IRS rules for Roth contributions.

For example:

- Assume you make $10,000 in Roth contributions to the Associate Savings Plan in 2024, and that those contributions meet the IRS rules governing Roth contributions.
- Because you have already paid taxes on those contributions at the 2022 tax rates, you have already satisfied the tax obligation on that amount — regardless of when you withdraw that $10,000 in the future.

- So, if your $10,000 Roth contribution grows to $25,000 by 2034, the year you withdraw this amount from the Plan, the entire $25,000 will be paid to you tax-free.

You may want to consult a financial and/or tax advisor to determine whether making Roth contributions is right for your financial situation.

Roth In-Plan Conversion

Roth In-Plan Conversion is an option to consider that may help maximize your retirement savings by converting all or a portion of your existing 401(k) balance to Roth 401(k). When you make a conversion, any amounts not taxed previously would be taxed as ordinary income in the year of conversion. However, the amount converted to Roth 401(k) and any future investment earnings grow tax-deferred and will be distributed tax-free.

You should consult a tax or financial advisor prior to initiating a Roth In-Plan Conversion to help determine whether this option is right for you. There are several factors to consider such as tax planning strategies, your age, and cash that may be needed to pay taxes on the converted amounts.

Catch-Up Contributions

If you have reached (or will reach) age 50 by the end of the calendar year and you have otherwise reached the maximum IRS contribution limit, you may make additional "catch-up" contributions to the Associate Savings Plan. These catch-up contributions may be made on pre-tax basis, a Roth basis, or a combination of both, and are eligible for Matching Company Contributions.

If you are eligible, you may contribute up to an additional $7,500 in catch-up contributions for the 2024 plan year, in addition to the $23,000 contribution limit. This amount may be adjusted on an annual basis by the IRS.

Please note that you must actively elect to make catch-up contributions to the Associate Savings Plan. This is a separate election you must make through Fidelity, and it is separate from your regular contributions. In addition, once you make a catch-up contribution election it will stay in effect until you change it.

Contact Fidelity at 800-854-4015 or log on to www.netbenefits.com to begin making or to change your catch-up contribution amounts.

Rollover Contributions

If you have accumulated savings in another qualified retirement plan, you may roll over those funds into your Associate Savings Plan account.

A rollover contribution is a transfer of an eligible balance from one employer's qualified plan to another eligible retirement plan, or to an individual retirement account (IRA). You can roll over account balances from the following kinds of retirement plans into the Associate Savings Plan:

- A previous employer's qualified plan, such as a 401(k), profit sharing, or pension plan

- Conduit IRAs (IRAs with money from a previous employer's qualified plan)
- 403(b) plans
- 457 governmental plans
- Thrift Savings Plan

A rollover contribution enables you to continue saving on a tax-deferred basis because you defer taxes on the rollover amount and any earnings.

The Plan accepts three types of rollovers:

- **A direct rollover:** You instruct your prior employer to transfer your eligible account balance directly to the Associate Savings Plan. For a direct rollover, no taxes are withheld on the transferred amount.
- **An indirect rollover:** You receive a distribution check from another qualified plan and deposit it to the Associate Savings Plan within 60 days. In this case, your funds were not directly rolled over to an IRA or a qualified plan, so the taxable portion of your distribution will be reduced by 20% for tax withholding. This 20% will be taxable in the year you receive the funds, unless you replace that amount and roll over the full value of your account balance to the Associate Savings Plan.
- **Distribution from another qualified plan:** A distribution that you may be holding temporarily in a separate IRA for the purpose of rolling it over. You must not, however, have made any additional non-deductible contributions to that IRA.

You are always fully vested in your rollover account, and you can invest (and change the investment) at any time. Your rollover will be invested according to your current plan elections, unless you elect otherwise. If you do not have an investment election on file, your rollover contribution will be invested in the LifePath Fund that corresponds to your anticipated retirement date.

To ensure a successful transfer of funds, please contact Fidelity before requesting a rollover from your previous employer or from your IRA.

Company Contributions

To help you save for retirement, Capital One provides two types of company contributions to your account. Depending on your participation level in the Plan, Capital One's contributions can add an additional 7.5% of your pay to the Plan on an annual basis.

- **3% Basic Non-Elective Company Contributions:** Regardless of whether you are actively contributing to the Plan, Capital One automatically contributes 3% of your eligible pay to your account each pay period. You are 100% vested in these contributions, which are made on your behalf by Capital One with no action required from you.

- **Matching Company Contributions:** Capital One provides a Matching Company Contribution on the amounts you contribute to the Plan, as follows:

  100% match on the first 3% of eligible pay you contribute, and

  50% on the next 3% of eligible pay you contribute.

Matching Company Contributions

Eligibility

To be eligible for a Matching Company Contribution, you must be contributing to the Plan on a pre-tax, Roth, and/or catch-up basis. The maximum Matching Company Contribution you are eligible to receive from Capital One is equal to 4.5% of your eligible pay*. To receive this maximum amount, you must contribute at least 6% of your eligible pay* to the Plan. Matching Company Contributions are not made on amounts over 6% of your eligible pay*. Capital One will match up to the first 6% of your Associate Elective Contributions, pre-tax and/or Roth contributions. Capital One Matching Company Contributions are always made on a pre-tax basis.

* For the purpose of matching company contributions calculation only, your eligible pay shall be reduced by your contribution to the Capital One Financial Corporation Voluntary Non-Qualified Deferred Compensation Plan ("DCP").

"True-up" Matching Company Contribution

At the end of each year, Capital One may provide you with a "true-up" Matching Company Contribution if you did not receive the maximum Matching Company Contribution based on your compensation and your own contributions. This might occur if you changed your contribution rate during the plan year, or if you did not actively contribute to the Associate Savings Plan for the entire year. In order to be considered for a true-up contribution, please keep in mind you must be actively employed by Capital One on December 31 of that plan year. However, in the event of your retirement, permanent disability, or death, or if you are no longer active due to job elimination, the requirement to be actively employed on December 31 will not be required, and you will be included in the true-up calculation for that plan year.

Example

Here is an example of how company contributions work. Assume the associate is earning $50,000 ($45,000 in base salary and $5,000 in annual bonus) and currently contributes 6% of their annual pay to the Plan.

Associate Elective Contributions	
Associate Contribution (6% of eligible compensation)	$3,000
Company Contributions	
3% Basic Non-Elective Company Contribution (3% of eligible compensation, regardless of whether or not you participate)	$1,500

Company Matching Contribution (100% of the first 3% you contribute plus 50% of the next 3% you contribute)	$2,250
Total Annual Contributions to the Associate Savings Plan	$6,750

By deferring 6% ($3,000 in the above example), this associate is maximizing the company match.

Vesting Service

Your "vested" balance is the part of your account that you own. You are always 100% vested in any Associate Elective Contributions (pre-tax, Roth and catch-up), pre-2008 after-tax contributions, and/or rollover contributions you make to the Plan as well as 3% Basic Non-Elective Company Contributions received from Capital One.

How to Become Vested in the Matching Company Contributions

Once you complete two years of service you are vested in all Matching Company Contributions made up to that point and in any additional Matching Company Contributions at the time they are contributed by Capital One. If you leave Capital One before you are 100% vested, you forfeit any unvested Matching Company Contributions (and any earnings on those amounts).

Under certain situations, you may become 100% vested in your Matching Company Contributions before completing two years of service. For example if you are an associate and you reach age 65, become permanently and totally disabled, or die during the plan year, you will become 100% vested in your Matching Company Contributions.

For the purposes of determining vesting, your "service" generally means the length of time you actually work for Capital One. This includes:

- Service you earned for an employer whose plan was merged into the Associate Savings Plan, except to the extent the Board of Directors of Capital One (the "Board") provides otherwise. However, please note that the vesting schedule under your prior plan may continue to apply to amounts you earned under that plan.
- Service you earned with a predecessor employer whose stock or assets were acquired by Capital One, but whose plan was not merged into the Associate Savings Plan, except to the extent the Board provides otherwise.
- Service you earned before you left employment with Capital One, provided you are rehired within 12 months. See "Breaks in Service" on page 15 for more details.

If You Are Rehired by Capital One

If you leave Capital One and forfeit your Matching Company Contributions, but are subsequently rehired by Capital One within five years, your forfeited contributions may be restored to your account as follows:

- If your account remained in the Associate Savings Plan, your forfeited Matching Company Contributions will automatically be restored to your account.
- If you received a distribution of your account from the Associate Savings Plan, to have Matching Company Contributions restored you must repay the full amount of any distribution you received at your earlier termination. This repayment must occur within five years of your rehire date.

If you are rehired more than five years after your termination, forfeited contributions will not be restored.

Breaks in Service

If you leave Capital One and are later rehired, the period during which you were not working at Capital One is called a “break in service.” If you were fully vested before your break in service (i.e. employed by Capital One for two years before separating from the company), you will remain vested once you return. However, if you incur a consecutive series of one-year breaks in service that equal (or exceed) either five years or the amount of service you had when you terminated, you will lose credit for any service you earned during your prior employment with Capital One, unless you were previously vested. In all other cases (in which you do not have breaks in service as described above), if you separate from service and are later reemployed, all of your prior service shall be counted for purposes of applying the vesting schedule to your post reemployment account(s).

Investment Options

About Diversification

The growth of your plan account depends, in part, on the investment elections you make. Diversification, or investing in several funds with different investment objectives, is a technique often used to reduce investment risk. The Associate Savings Plan offers a broad range of investment options to help you diversify your account.

You decide where and how to invest your own contributions, as well as those made to your account by Capital One. You may invest in one fund or among any combination of the funds currently available under the Plan. You may also choose to open a Fidelity BrokerageLink account, which offers access to an even wider range of investment funds (contact Fidelity for additional information and associated fees related to the BrokerageLink account).

The Associate Savings Plan is intended to constitute a plan as described in the ERISA Section 404(c) and the corresponding regulations. The Capital One Benefits Committee (the "Benefits Committee") and other fiduciaries appointed by the Committee are relieved of liability for any losses that are the direct result of your investment instructions. You are encouraged to review the fund information available to you before investing in a particular fund.

When you make your investment elections, they must be made in whole percentages and add up to 100%. You may reallocate your existing account balance or change the way you invest future plan contributions by calling Fidelity at 800-854-4015 or by logging on to www.netbenefits.com.

If you do not make an investment election, your contributions and/or those made by Capital One will automatically be invested in the BlackRock LifePath Fund that most closely corresponds to your anticipated retirement date. This investment is intended to be a "qualified default investment alternative" for purposes of ERISA, and the company and plan fiduciaries are relieved of liability for any losses that are the direct result of such default investment.

Your Investments

The managers of the funds in which you direct investment of your account and other service providers may receive fees and other compensation as a result of your investment. Fee disclosure information is available online from Fidelity at www.netbenefits.com or you can call 800-854-4015 to request a copy.

Available Resources

- **"Performance and Research" Page:** You can also access the "Performance and Research" page at www.netbenefits.com to learn about the investment options offered through the Plan, and the tools available to assist you in selecting and managing your investments. In addition, information on the historical performance of each investment fund, including performance data for each of the past three years, is available on this page.

- **Fund Information:** Available fund information for each fund can be found at www.netbenefits.com under the "Performance and Research" page. Select any fund to review performance & risk information, composition, and fees & pricing. Contact Fidelity for details, as well as to view the most up-to-date fund offerings.

About the Capital One Stock Fund

One of the investment alternatives under the Plan is the Capital One Stock Fund. Because this fund invests exclusively in Capital One common stock and a small amount of cash to facilitate participant transactions into and out of the Fund, it is not diversified or managed like a traditional mutual fund.

Capital One common stock has experienced, and will continue to experience, substantial fluctuations in share price and return. Because the fund is not diversified, the Capital One Stock Fund carries the highest degree of risk out of all your available investment options.

If you choose to invest in the Capital One Stock Fund, in general any dividends you receive from Capital One stock will automatically be invested in additional stock shares through the Fund. However, you may request to receive these dividends directly as cash payments. You can choose to change this election by contacting Fidelity at 800-854-4015 or log on to www.netbenefits.com.

The Benefits Committee has approved Newport Trust Company as the fiduciary and investment manager for the Capital One Stock Fund. Newport Trust has the authority to determine whether maintaining the Stock Fund is prudent under ERISA.

Market Timing

Market timing is defined as frequent trading of investments designed to take advantage of short-term price fluctuations. Frequent trades or exchanges can be detrimental to all fund investors by disrupting portfolio management and raising trading-related expenses, thereby harming fund performance.

The various funds offered in the Associate Savings Plan may have different definitions of market timing, which can be found in each fund prospectus. The investment managers for each fund review reports showing participant trading activity, and the fund manager can determine if those transactions constitute market timing. This determination may involve judgments based in part on quantitative factors, including the size, number and timing of purchases and/or redemptions, but may not be strictly quantitative. Attempts may be made to distinguish market timing from other types of trading, such as periodic rebalancing in connection with asset allocation or dollar cost averaging.

You should be aware that fund companies may take action to curb this activity, including (but not limited to) rejection of purchase orders or exchanges, modification or discontinuation of the exchange privilege and imposition of additional (redemption or exchange) fees.

Securities Law Matters

The following sections outline several matters of securities law as they relate to investments under the Associate Savings Plan.

Registration Statement

Capital One is subject to the informational requirements of the Securities Exchange Act of 1934, as amended (the “Exchange Act”). Therefore, we are required to file reports and other information about Capital One with the SEC. Capital One has filed on May 13, 2021 a Registration Statement with the SEC on Form S-8 (the "Registration Statement") under the Securities Act with respect to the participants' interests in the Associate Savings Plan and the Capital One Stock Fund offered under the Associate Savings Plan.

This prospectus does not contain all of the information set forth in the Registration Statement and the exhibits thereto. For further information concerning Capital One and the Plan, reference is made to the Registration Statement. Capital One registered shares of Capital One common stock having a value of $550,000,000 on the Registration Statement for issuance under the Capital One Stock Fund, which may be acquired by participants at fair market value.

Capital One has not authorized any other person to provide you with any information different from, or in addition to, or to make any representations in connection with the offer of any securities under the Plan other than those contained in this prospectus or in such other documents designated by Capital One as constituting part of a prospectus covering such securities. If given or made, you must not rely upon any such information or representation as having been authorized by Capital One. Capital One takes no responsibility for, and can provide no assurance as to the reliability of, any other information that others may give to you.

This prospectus is not an offer to sell or a solicitation of an offer to buy any securities under the Plan, nor will there be any sale of these securities by anyone, in any state in which such an offer, solicitation or sale would be not permitted. Neither the delivery of this prospectus nor the sale made hereunder shall, under any circumstances, create any implication that the information set forth herein is correct as of any time subsequent to the respective dates of this prospectus and the documents incorporated by reference herein and therein.

Incorporation of Certain Documents by Reference

This prospectus is part of the Registration Statement. The Registration Statement, including the attached exhibits and schedules, contains additional relevant information about Capital One and the securities described in this prospectus. The SEC allows Capital One to "incorporate by reference" information into this prospectus. The Company hereby "incorporates by reference" into this prospectus the documents listed below, which means that the Company is disclosing important information to you by referring you to those documents. The information that the Company files later with the SEC will be deemed to automatically update and supersede this information. Specifically, the Company incorporates by reference:

- The Company's latest Annual Report on Form 10-K pursuant to Section 13(a) or 15(d) of the Exchange Act (including the portions of our Definitive Proxy Statement on Schedule 14A) or latest prospectus filed pursuant to Rule 424(b) under the Securities Act, that contains audited financial statements for the Company's latest fiscal year for which such statements have been filed and the Associate Savings Plan's latest Annual Report pursuant to Section 13(a) or 15(d) of the Exchange Act;
- All other reports (including the Company's Quarterly Reports on Form 10-Q and Current Reports on Form 8-K) filed pursuant to Section 13(a) or 15(d) of the Exchange Act since the end of the fiscal year covered by the Company's latest annual report or prospectus referred to in the bullet above,

provided, however, that we are not incorporating by reference any information furnished (but not filed) under Item 2.02 or Item 7.01 of any Current Report on Form 8-K; and

- The description of the Company's common stock, par value $0.01, set forth in Exhibit 4.3 to the 2023 Annual Report on Form 10-K, filed with the SEC on February 23, 2024, including any amendments or reports filed for the purpose of updating such description.

All documents subsequently filed by the Company pursuant to Sections 13(a), 13(c), 14 and 15(d) of the Exchange Act, prior to the filing of a post-effective amendment which indicates that all securities referred to herein have been sold or which deregisters all such securities then remaining unsold, shall be deemed to be incorporated by reference in this prospectus and to be part hereof from the date of the filing of such documents, other than information in such documents that is deemed to have been “furnished” in accordance with SEC rules, which shall not be deemed to be specifically incorporated by reference into this prospectus.

Any statement contained in this prospectus, or in a document incorporated by reference in this prospectus, will be deemed to be modified or superseded for purposes of this prospectus to the extent that a statement contained in any other subsequently filed document that also is incorporated by reference in this prospectus modifies or supersedes the earlier statement. Any statement that is modified or superseded by a subsequently filed document that is incorporated by reference in this prospectus will not be deemed to constitute a part of this prospectus, except as modified or superseded by the statement in the subsequently filed document. You may request a copy of these filings, at no cost, by telephone at (703) 720-2455 or via email at investorrelations@capitalone.com.

Capital One is subject to the informational requirements of the Exchange Act. Therefore, Capital One files annual, quarterly, and current reports, proxy statements and other information about the Company with the SEC.

- Our SEC filings are available to the public over the Internet at the SEC’s website at http://www.sec.gov. You may also access our SEC filings through the “SEC & Regulatory Filings” link under “About Us; Investors” at www.capitalone.com.

Restrictions on Resale of Capital One Stock

Under the Capital One Securities Law Policy, participating employees’ transactions into and out of the Capital One Stock Fund (including intra-plan transfers among investment accounts) are deemed to involve purchases or sales that should not be initiated when an employee is aware of material nonpublic information or subject to a trading Lock-out. In addition, under the Capital One Securities Law Policy, Control Group members (as defined in the Capital One Securities Law Policy) are required to contact Governance & Securities at SECpolicy@CapitalOne.com or the General Counsel to obtain pre-clearance of any proposed transaction in Capital One securities before taking any steps to effect such a transaction.

Control Group members must report the acquisition or disposition of company securities purchased or sold under the Plan through intra-plan transfers, or sales needed to fund cash for loans, withdrawals, and/or cash distributions from the Plan on forms filed with the SEC, the New York Stock Exchange and the Company under Section 16(a) of the Exchange Act and Rule 144. Absent an exemption, Control

Group members must file the reports under Section 16(a) within two business days of the date on which the reportable transaction occurs and the reports under Rule 144 on the same day on which the reportable transaction occurs. This reporting requirement does not apply, however, to the acquisition of securities through the regular allocation of future contributions to the Plan (including loan repayments).

Control Group members' transactions may be subject to the "short swing profit" provisions of Section 16(b) of the Exchange Act, under which a purchase of securities within six months before or after a sale of securities can result in recovery by Capital One of all or a portion of any amount by which the sale proceeds exceed the purchase price. Rules adopted under Section 16(b), including Rule 16b-3, may exempt certain transactions from these reporting or liability obligations, but will not exempt discretionary "opposite way" transactions, such as loans, in-service withdrawals in cash, and intra-fund transfers of pre-existing plan assets out of the Capital One Stock Fund (a deemed "sale") within six months before or after an election to transfer pre-existing plan assets into the Capital One Stock Fund (a deemed "purchase"). In addition, these types of transactions can be matched with transactions that Control Group members effect outside of the Plan for purposes of imposing short swing profit liability. Control Group members should consult their counsel regarding the application and consequences of Sections 16(a) and 16(b) prior to engaging in any transaction in Capital One securities.

Under United States federal law, securities distributed from the Plan to participating employees who are not affiliates of Capital One Financial Corporation (within the meaning of the Securities Act) generally may be resold to the public from time to time without registration or other restriction under the Securities Act. Securities distributed to affiliates under the Plan generally may not be resold to the public without registration under the Securities Act, unless under an exception from such registration. One such exception would be compliance with the applicable requirements of Rule 144 set forth under the Securities Act, including the volume limitations but without regard to the holding period requirement of Rule 144. An affiliate is a person who directly or indirectly controls or is controlled by, or is under common control with, Capital One Financial Corporation.

Investment Fees

You pay an investment management fee and an investment fiduciary fee in connection with fund investments in the Plan. The investment management fee, which is a standard practice and is determined annually, is compensation for the professional investment management services (including paying the salaries of professionals and support staff involved in the day-to-day management of the respective fund) provided to each fund in the Associate Savings Plan. The investment fiduciary fee covers the delegation of the investment management of the Plan to an outside investment management firm to evaluate, select, and monitor the investment managers in the Plan's investment options and allow for custom funds to be offered in the Plan.

The investment management fee is deducted from the fund before earnings (or losses) are allocated to your account. In other words, the investment management fee is taken daily, prior to the calculation of the Net Asset Value. You are never directly charged a fee. Most funds have other expenses, such as custodial, legal, audit, and transfer agent costs that are also deducted from the Net Asset Value of the fund. The investment fiduciary fee is deducted from your account quarterly and is calculated as a percentage of your overall account balance (excluding company stock and Brokerage Link).

Accessing Your Account While Working

Loans

If you need access to your money before you reach retirement and you are actively employed with Capital One, you can borrow from your plan account. You then pay back the loan (plus interest) to your own account, through regular after-tax payroll deductions. To apply for a loan, contact Fidelity at 800-854-4015 or log on to www.netbenefits.com.

The following table provides some general information on taking loans from the Associate Savings Plan.

Loan Guidelines	
Minimum Loan Amount	▪ $1,000 ▪ You must have at least a vested balance of $2,000 to request a loan.
Maximum Loan Amount	Generally the lesser of: ▪ 50% of your vested account balance ▪ $50,000 If you had a plan loan in the previous 12 months, your maximum loan amount will be reduced by any excess of your highest outstanding loan balance during the one-year period ending on the day before your new loan is made, over the outstanding balance of your loans from the Plan on the date the loan is made. For associates formerly employed by ING DIRECT, the portion of your account attributable to the ING DIRECT Pension Plan is not available for a plan loan.
Number of Loans Allowed	▪ You can have two outstanding loans at one time, although only one of those may be a primary residence loan.
Interest Rate	▪ Based on prime interest rate plus an additional 2% in the month you take your loan. ▪ The interest rate does not change over the life of the loan.
Impact on Fund Balances	▪ The funds for your loan are taken proportionately from all of your investment options. ▪ Repayments are invested in the same percentages as your most recent investment elections.
Repayment Period	▪ Up to 10 years if the loan is for the purchase of a primary residence. ▪ Up to 5 years for all other loans.

Fees

- Set-up fee of $50 for processing each loan.
- No maintenance fee for each outstanding loan.

Loan Repayments

Although Capital One must withhold your loan payments (with interest) each pay period through after-tax payroll deductions and make the loan repayment to Fidelity, it is your responsibility to monitor your loan activity and repayments. The Plan invests your repayments (both principal and interest) in your account based on your most recent investment election. If you repay your loan within the required timeframe, you avoid taxes normally applied to other plan distributions. You can pay off your loan in full at any time.

If you fail to repay a loan, the Plan treats your loan as a regular taxable distribution that is subject to the same rules, limitations and tax consequences as other plan withdrawals. (See “Payment Made to Participant” for further details.) Please note that it is your responsibility to ensure that regular loan repayments are made, even if repayments are being made through the Capital One payroll. You should review your pay statement each pay period to ensure your loan repayment was properly made. Failure to do so may result in unintended defaulting on the loan. It is especially important to monitor loan repayments if for some reason, you do not receive compensation during a pay period, and therefore, Capital One cannot withhold a loan payment. In these cases, you should reach out to Fidelity to determine how to make up the missed loan payment. Defaulting on a loan may have serious tax consequences, for which you will be responsible.

If You Leave the Company

If you leave Capital One with an outstanding loan, you may continue making repayments on your own directly to Fidelity — contact Fidelity for details. If you do not set up direct loan repayments with Fidelity, you will default on the loan and it will be considered a taxable distribution. Defaulting on a loan may have serious tax consequences, for which you will be responsible.

If You Have a Leave of Absence

If you go on an unpaid leave of absence, you may have the option to suspend loan payments during your absence. Call Fidelity at 800-854-4015 for more information. If your loan is not eligible for suspension, you will need to make arrangements directly with Fidelity so that your repayments continue and your loan does not go into default. Defaulting on a loan may have serious tax consequences, for which you will be responsible.

Withdrawals

You may find yourself in a situation where you need to access your savings while you are still working. However, because the Plan is intended to help you save for the future, federal law limits when and how you can withdraw money from your account.

There are four types of eligible withdrawals under the Associate Savings Plan, as described in the following sections.

After-Tax Withdrawal

Prior to 2008, the Plan allowed you to make a different type of after-tax (non-Roth) contribution to your account. If you were a participant in the Plan at that time and made after-tax contributions, you can withdraw these pre-2008 after-tax contributions (plus investment) at any time. Call Fidelity at 800-854-4015 to request a lump-sum cash distribution of eligible amounts. (Plan rules limit withdrawals of your Roth contributions.)

Because you already paid taxes on these after-tax contributions, they are not subject to ordinary income tax when withdrawn. However, taxes and other penalties may apply to any investment earnings associated with the withdrawn amount because you have deferred paying taxes on the investment earnings while they remained in your account.

Age 59½ Withdrawal

Once you reach age 59½, you can withdraw a portion of your plan account, including your associate elective pre-tax and Roth contributions, pre-2008 after-tax, rollover, and pre-1994 matching company contributions. Call Fidelity at 800-854-4015 to request a lump-sum cash distribution of eligible amounts. The amount of your withdrawal (not including your after-tax contributions) is subject to ordinary income tax, but not the 10% early withdrawal penalty.

When making an age 59½ withdrawal, you are not allowed to withdraw any 3% Basic Non-Elective Company Contributions, any matching company contributions made on or after January 1, 1994, nor any investment earnings on those amounts.

Hardship Withdrawal

Under certain circumstances, the Plan allows you to withdraw some or all of your account if you (or your spouse, dependent children or beneficiary) have an immediate and qualifying financial need. This type of withdrawal is called a hardship withdrawal.

- You may request a hardship withdrawal only after exhausting all other financial resources reasonably available, including other withdrawals permitted under the Plan or by taking a plan loan.
- IRS regulations limit your withdrawal to an amount sufficient to meet your financial need (plus taxes and penalties).

- A hardship withdrawal can include your own Associate Elective Pre-Tax and Roth contributions, vested Matching Company Contributions and rollover contributions, plus investment earnings on those amounts. (There is an exception for earnings on associate elective contributions made on or after January 1, 1989.)
- Hardship withdrawal amounts cannot include any 3% Basic Non-Elective Company Contributions, any amounts attributable to the ING DIRECT Pension Plan, or any earnings on those amounts.

Based on IRS regulations, Capital One allows hardship withdrawals only for the following reasons:

- Buying your principal residence (but not including mortgage payments);
- Paying college tuition, educational fees, and room and board expenses for you, your spouse, your dependents or your plan beneficiary for the next 12 months of post-secondary education;
- Paying for uninsured medical expenses incurred for you, your spouse, your dependents or your beneficiary;
- Paying for burial or funeral expenses for you, your deceased parent, spouse, beneficiary, children or dependents;
- Paying for expenses for the repair of damage to your principal residence that would qualify for the casualty deduction under the Internal Revenue Code; or
- Preventing eviction from or foreclosure on your principal residence.

To request a hardship withdrawal, call Fidelity at 800-854-4015. Once you submit documentation supporting your hardship, Fidelity will determine whether your hardship complies with IRS regulations.

A hardship withdrawal may be subject to a 10% early withdrawal tax penalty as well as ordinary income taxes. You may wish to consult with a tax advisor to determine your personal tax situation.

Rollover Withdrawal

If you have made rollover contributions to the Plan, at any time you can withdraw some or all of those contributions (plus investment earnings). Call Fidelity at 800-854-4015 to request a lump-sum cash distribution of eligible amounts.

Except to the extent your withdrawal involves any sort of after-tax contributions made to the Plan, your rollover withdrawal will generally be subject to ordinary income tax when withdrawn. In addition, tax and other penalties may apply to the taxable portion of the withdrawal, if you are younger than age 59½.

Accessing Your Account After You Leave Capital One

Your Distribution Options

If you leave employment with Capital One, retire, become disabled or die, you (or your beneficiary) are eligible to receive the entire balance of your vested account. When the Plan distributes your account, you may:

- Ask Fidelity to make a direct rollover of your distribution to an IRA or another employer's qualified plan (rollovers are not allowed for installments paid over 10 years or longer);
- Take your distribution and then roll it over into an IRA or another employer's qualified plan; or
- Take your payout directly as a cash payment.

If Your Balance Is Less than $1,000

If your account balance is less than $1,000, you will automatically receive a lump-sum cash payment of your account unless you request a direct rollover to another plan within a specified time following your termination.

You have the option to select either full or partial lump sum cash payment as a distribution from your account, except to the extent you elect to receive a distribution of Capital One common stock (for any investment you may have made in the Capital One Stock Fund). In addition, amounts attributable to the ING DIRECT Pension Plan must be paid in the form of an annuity unless you (and, if you are married, your spouse) elect a lump-sum.

You will be sent a reminder at least 30 days before any lump-sum payment is automatically made. If you do not directly rollover your distributions, 20% will be withheld automatically for federal withholding taxes and you will be responsible for any additional federal, state and local taxes as well as the 10% early withdrawal penalty.

Please Call Fidelity at 800-854-4015 to request a full or partial lump-sum distribution.

If Your Balance Is Between $1,000 and $5,000

If your account balance is between $1,000 and $5,000, Capital One will automatically roll over your account to a Fidelity IRA unless you request a rollover to another plan or a lump-sum payment within a specified period of time following your termination.

You will be sent a reminder at least 30 days before the rollover is automatically made. You can contact Fidelity at 800-544-6666 or online at www.fidelity.com to change your distribution option or inquire about your IRA.

If Your Balance Is More than $5,000

If your vested account balance is more than $5,000, you may defer receiving your distribution until a later date. However, current law requires that payments must begin in the year you retire from Capital One or April 1 after the year in which you reach age 73, whichever is later.

Applying for Benefits

You (or your beneficiary) must apply for benefits to receive money from your account. To apply for benefits, you should contact Fidelity at 800-854-4015. If your beneficiary is applying for benefits, he or she must first contact the HR Help Center at HRHelpCenter@CapitalOne.com or toll free at 888-376-8836.

Once a distribution has been requested, Fidelity will forward you the necessary documentation. After your application has been accepted, Fidelity will pay your benefits as soon as administratively feasible.

Please note that once you leave employment with Capital One, there is a 30-days waiting period before a full payout is available to allow for final contributions to post to your account.

About Taxes

In the event of your retirement, death, or if you become disabled you (or your beneficiary) are eligible to receive the entire balance of your vested account. Certain United States federal income tax laws will apply to any distribution you receive from the Plan. These laws apply generally to plan participants who are United States citizens or who are residents of the U.S. for federal income tax purposes.

The following summary is not meant to be inclusive of all the regulations that may affect your federal, state, and/or other taxes. In addition, this summary should not be viewed as providing personal tax advice. Remember that these and other tax laws are subject to change at any time. Before taking any withdrawal or distribution from the Plan, you are advised to consult a tax advisor for information specific to your personal financial situation.

Capital One Stock Dividends

If you have invested some or all of your plan account in the Capital One Stock Fund, you can elect to have your dividends paid to you directly. If you elect to receive these dividends as cash, they generally will be taxed as ordinary income at the time of payment. If they are reinvested, they will be taxed under the normal rules applicable to plan distributions.

Contact Fidelity at 800-854-4015 or log on to www.netbenefits.com to request your Capital One stock dividends directly as cash.

Roth Qualified Distributions

If you make Roth contributions, these contributions are placed into a separate account under the Plan to which regular Roth and catch-up Roth deferrals are made. You may also have a Roth rollover contribution account with funds transferred in a direct rollover from another qualified plan.

The taxation of Roth contribution accounts depends on whether the distribution is a “qualified” distribution. In order to receive a “qualified” distribution of Roth contributions, such contributions must be held for at least five years and be paid after age 59½, or after your death or disability. The five-year period begins on the earlier of:

- The first day of the taxable year in which the first Roth contributions were made, or
- The first day of the first taxable year that a Roth contribution was made to a prior qualified plan that was directly rolled over into the Plan.

A qualified distribution from any Roth contribution account is not includible in your gross income.

Eligible Rollover Distributions

All payments from the Plan, except for hardship withdrawal distributions, are eligible for rollover distributions to:

- An IRA;
- A Roth IRA (subject to the rules listed below);
- An employer's plan as described in Section 401(a) or 403(b) of the Code; or
- A governmental 457 plan that accepts rollovers.

A payment from the Plan of either a normal in-service withdrawal or a partial or total distribution that is eligible for rollover may be made in two ways. The payment may either be paid as a direct rollover to another qualified plan, IRA, or Roth IRA or it may be paid directly to you.

Special Rule for Non-Roth Rollovers to a Roth IRA

In certain circumstances you may be eligible to roll over your plan accounts to a Roth IRA. If you do so, the amount you roll over will be includible in your gross income. You should consult with your tax advisor regarding the conditions for such a rollover and whether it makes sense for you.

Roth Accounts

You are permitted to roll over a distribution from your Roth accounts (contributions and/or rollover) only to another designated qualified plan Roth account (in a direct rollover) or to a Roth IRA (in either a direct rollover or a 60-day rollover). When this occurs, the amount rolled over is not includible in your gross income.

You may establish a Roth IRA and roll over an eligible distribution from your Roth accounts to that Roth IRA. However, the years your Roth funds were a part of the Plan generally will not count toward the five-year holding period that you must satisfy in order to take a qualified distribution from your Roth IRA. If the entire amount of a distribution from your Roth accounts is rolled over to another Roth account or Roth IRA, then the base amount of your rollover that is being moved to the new Roth account or Roth IRA is the amount that would not have been includible in your gross income if the distribution had not been rolled over.

In other words, if an amount that is a qualified distribution is rolled over, then the entire amount of the rollover contribution is allocated to investment in the Roth IRA. If less than the entire amount is rolled over and the distribution is not a qualified Roth distribution, then the part that is rolled over is deemed to consist first of the earnings on your Roth accounts. This permits you to roll over only the otherwise taxable portion of your distribution, if you wish.

You should consult with your tax advisor regarding any potential tax implications of a Roth account or Roth IRA rollover.

Direct Rollover

If a direct rollover is chosen, all of the following will apply:

- The otherwise taxable portion of the payment will not be taxed at that time and no income tax will be withheld.
- The distribution will be payable to the IRA, Roth IRA, or to another employer's plan that accepts rollovers.
- The payment will be taxed when it is later taken out of the IRA, Roth IRA, or the other employer's plan (except to the extent that after-tax contributions, Roth contributions, or Roth earnings with respect to a qualified Roth distribution are rolled over; those contributions generally are not taxed when taken out of the IRA, Roth IRA, or the other employer's plan).
- The five-year rule for qualified distributions from a Roth IRA must be satisfied independently from any Roth contributions that were held within a qualified plan. If the separate five-year Roth IRA holding period is not satisfied, a distribution from a Roth IRA attributable to a prior qualified distribution rollover will be tax-free, but any earnings earned within the Roth IRA will be taxable. Distributions from a Roth IRA are deemed to consist first of a tax-free return of basis, and then taxable earnings.

Payment Made to Participant

If you elect to receive the payment directly:

- The Plan is required by law to withhold and pay to the IRS 20% of the taxable distribution amount. You cannot elect out of this withholding. Therefore, only 80% of the taxable portion will be paid to you. The amount withheld will be credited against your federal income taxes by the IRS.
- When you file your tax return the following year, you will be responsible for any additional income taxes (including state and local taxes), unless it is rolled over to an IRA or another qualified plan. In addition, you may also be subject to an additional 10% penalty if the distribution is made prior your attainment of age 59½ (or unless another exception applies). IRS Form 5329 contains more information on the additional 10% tax.
- There are certain other exceptions to the 10% penalty tax, the most important of which include distributions:

Paid due to early retirement (provided you have attained age 55 with 10 years of service);

To pay certain medical expenses;

Paid due to your death or total and permanent disability;

Paid due to being ordered or called to active military duty; and

Paid under a Qualified Domestic Relations Order (QDRO).

- The payment may be rolled over within 60 days of receipt. However, if 100% of the taxable amount is to be rolled over, you must replace the 20% that was withheld for taxes.

Non-Eligible Rollover Distributions

The following types of payments cannot be rolled over:

- Required minimum payments, or payments beginning on or after the April 1 after the later of:

The year you reach age 73, or

The year you retire

- Hardship withdrawal distributions

- Refunds made to you in order to correct excess deferrals or contribution testing failures

Administrative and Legal Information

Assignment of Benefits

As a general rule, benefits under the Plan may not be assigned or alienated. Some exceptions are recognized by the IRS. A Qualified Domestic Relations Order (QDRO) is a court order that creates a right for an alternate payee (e.g., a former spouse) to receive some or all of a participant's benefit in a qualified plan. A Domestic Relations Order is a judgment, decree or other court order that relates to the provision of child support, alimony or marital property rights. Additionally, the Plan may make payments in response to a federal tax levy or judgment.

You or your beneficiaries are entitled to a copy of the procedures governing QDROs. To request a free copy of the QDRO procedures for the Associate Savings Plan, call the Qualified Order Team for Capital One at Fidelity at 800-854-4015 or contact the HR Help Center at HRHelpCenter@CapitalOne.com or toll free at 888-376-8836.

Top Heavy Provisions

If the Plan should become "top heavy," you may qualify for additional benefits, and your benefits may vest at a faster rate. A plan is top heavy if more than 60% of the account balances have been accumulated for the benefit of employees defined as "key employees." Key employees are primarily officers and owners of the company. You will be informed if the Plan becomes top heavy.

Uniformed Service

If you take a leave of absence because of qualified military service, and return to employment with Capital One immediately after the period of military service (within the time period prescribed by the Uniformed Services Employment and Reemployment Rights Act, or USERRA), you will continue to participate as if you had been working for Capital One during your military leave. This means that your time of service is not considered a break in service for purposes of vesting.

Additionally, if you return to employment with Capital One within the appropriate time period after your military service, you will receive the 3% Basic Non-Elective Company Contributions that would have been credited to you had you not been on leave. Under certain circumstances, you will also be able to make up contributions and receive the applicable Matching Company Contributions for the period of military service as if you had been working for Capital One, and had made the contributions during the leave of absence.

If you wish to make up contributions upon your return, please contact the HR Help Center at HRHelpCenter@CapitalOne.com or 888-376-8836.

If you have an outstanding loan at the time of military leave and elect to continue to repay your loan during your military leave, interest on your loan will still continue to accrue; however, the interest rate will be limited to 6% per year. You may also suspend the repayment of your loan during your military leave. Interest on your loan will continue to accrue on your outstanding loan balance while payments are suspended. Upon the completion of your military leave and return to employment, your loan will be reamortized and the original repayment period of the loan will be extended to reflect the period of your military leave.

If you are on military leave you may request a hardship distribution. However, if you receive a distribution you will not be permitted to make pre-tax deferrals to the Plan during the six-month period beginning on the date of distribution.

Circumstances that May Affect Your Benefit

Benefits may be denied, lost or stopped, or you may not be eligible for benefits, under the following circumstances:

- You are not eligible to participate in the Plan;
- You receive a payment from the Plan that is larger than it should be. In this case, you must repay the excess to the Plan; or
- Certain costs of running the Plan (such as the trustee's and the other service providers' fees) and/or investment fees may be charged against all participants' accounts on a pro-rated basis.

Claims and Appeals

If you do not receive benefits to which you believe you are entitled under the Associate Savings Plan, you may file a written claim for such benefits with the Plan Administrator. The written claim should include your name and address, the benefits being claimed, the date of the initial notice of denial, and the reason(s) you believe you are entitled to such benefits, written in clear and concise terms. You may designate, in writing on such form as may be provided by the Plan Administrator or is otherwise acceptable to the Plan Administrator, an authorized representative to act on your behalf in pursuing the claim or a subsequent appeal. You must exhaust your rights under these claims procedures before you may file suit to recover any benefits claimed.

You may write to the Plan Administrator at:

Capital One Financial Corporation
Benefits Committee c/o HR Benefits
15000 Capital One Drive
Richmond, VA 23238

You will receive written notice of the denial within 90 days after receipt of your written claim, or within 180 days after such receipt if special circumstances require an extension of time. If special circumstances require an extension of time, you will be furnished written notice prior to the end of the initial 90-day period. The notice of extension explains the special circumstances requiring an extension of time and the date by which the Plan Administrator expects to render a decision.

The written notice of denial contains the following:

- The specific reason or reasons for denial;
- A reference to specific plan provisions on which the denial is based;
- A description of any additional material or information necessary for the claimant to perfect the claim, and an explanation of why the material or information is necessary; and
- An explanation of the claims review procedure and the time limits applicable to such procedures, including a statement of your right to bring a civil action under ERISA Section 502(a) following a denial upon review of the claim.

Appealing a Claim Denial

Review may be requested at any time within 60 days following the date you received written notice of the denial of your written claim. A failure to file a request for review within 60 days constitutes a waiver of your right to have your claim denial reviewed.

Your petition for review should be made in writing to the Plan Administrator and should state your name and address, the fact that you are disputing the denial of a claim, the date of the initial notice of denial, and the reason(s), in clear and concise terms, for disputing the denial.

During the review process, the Plan Administrator will:

- Provide, upon request and free of charge, reasonable access to and copies of all documents, records and other information relevant to the claim;
- Permit you to submit written comments, documents, records and other information relating to the claim; and
- Provide a review that takes into account all comments, documents, records and other information submitted by you, without regard to whether such information was submitted or considered in the initial determination.

Unless special circumstances require an extension of time for processing, you are notified of the decision on review within 60 days after receipt of your written petition for review. If an extension is necessary due to special circumstances, you are given a written notice of the required extension prior to the expiration of the initial 60-day period. The notice indicates the circumstances requiring the extension and the date by which the claims administrator expects to render a decision. The extension may be for up to 60 additional days.

If your claim is denied upon review, the written notice contains the following information:

- The specific reason for the decision and specific reference to the provisions of the Plan on which the decision is based;

- A statement that you are entitled to receive, upon request and free of charge, copies of all documents, records and other information relevant to the claim for benefits; and
- A statement explaining your right to bring a civil action under Section 502(a) of ERISA following the denial.

Special Rules for Enrollment/Eligibility Challenges

Special rules apply to any claim that an individual was ineligible to participate in the Plan or failed to timely enroll. In the event you wish to challenge a determination that you were ineligible to participate in the Plan or that you did not timely enroll in the Plan, you should contact the HR Help Center. Any such claim will be subject to a full and fair review.

Timeliness of All Claims and Appeals

In all events, you must bring a claim for benefits in writing no later than one year (or such shorter time as noted above) after you become entitled to the benefit. In addition, in no event may any lawsuit be brought with respect to any claim for benefit more than one year after the final denial of the claim.

Pension Benefit Guaranty Corporation

The benefits provided by the Plan are not insured by the Pension Benefit Guaranty Corporation (PBGC) because the PBGC insurance program does not cover defined contribution plans.

Future of the Plan

Capital One Financial Corporation reserves the right to amend or terminate the Plan at any time. No amendment to or termination of the Plan will reduce the rights of any participant or beneficiary to benefits already earned, allow the return of the Plan's assets to the company, or allow the use of the Plan's assets for any purpose other than for the exclusive benefit of plan participants (Plan assets may be used, however, to help defray reasonable administrative expenses of the Plan).

If the Associate Savings Plan is terminated or partially terminated, you will automatically become 100% vested in your account balance.

Your Rights under ERISA

Certain rights and protections are provided to plan participants under the Employee Retirement Income Security Act of 1974 (ERISA). These ERISA rights include the following:

- You may contact the HR Help Center to examine all plan documents without charge. These may include the annual financial reports, the plan descriptions, trust agreements, and all other documents filed with the United States Department of Labor and available at the Public Disclosure Room of the Employee Benefits Security Administration.

- Copies of plan documents and the latest annual report (Form 5500 Series), and other information may be obtained by writing to the Benefits Committee. A reasonable charge may be assessed for these copies of plan documents and the latest annual report (Form 5500 Series), and other information may be obtained by writing to the Benefits Committee. A reasonable charge may be assessed for these copies.

- You have the right to receive a written summary of the Plan's annual financial reports. The Plan Administrator is required by law to provide each participant with a copy of any summary annual report.

- You are entitled to obtain once a year, a statement of the total benefits accrued and the nonforfeitable (vested) benefits, if any, or the earliest date on which such benefits will become vested.

- You may not be discharged or discriminated against to prevent your obtaining a benefit or exercising your ERISA rights.

- If a claim for a benefit is denied, in whole or in part, a written explanation from the Plan Administrator or a delegated representative will be provided. You have the right to obtain copies of documents relating to the decision without charge, and to have the Benefits Committee review and reconsider any denied claim all within certain time schedules.

In addition to creating rights for plan participants, ERISA imposes certain duties on the people responsible for the operation of the Plan. The people who operate the Plan, called fiduciaries, have a duty to do so prudently and in the best interest of you and your beneficiaries. Fiduciaries who violate ERISA may be removed and required to make good any losses they have caused the Plan.

The named fiduciary with respect to this plan is the Benefits Committee, except that as to any matter specified in the Plan or in the trust agreement as being the responsibility or function of the Trustee, the named fiduciary is the Trustee.

Under certain circumstances, outside assistance may be necessary to resolve disputes between you and plan officials. For example:

- If materials are requested from the Benefits Committee and are not received within 30 days, suit may be filed in a federal court. In such a case, the court may require the Benefits Committee to provide the materials and pay a fine of up to $110 a day until the materials are received — unless the materials were not sent because of reasons beyond the control of the Benefits Committee.

- If a claim for benefits is denied or ignored, in whole or in part, after a final review, suit may be filed in a state or federal court.

- If you disagree with the Plan's determination regarding the qualified status of a domestic relations order, or the lack thereof, you may file suit in federal court.

- If the fiduciaries misuse the Plan's money, or if you are discriminated against for pursuing a benefit or exercising your ERISA rights, you may seek help from the United States Department of Labor or file suit in federal court.

If a suit is filed, the court will decide who should pay court costs and legal fees. If you win the suit, the court may order the person sued to pay the court costs and legal fees. If you lose the suit, the court may order you to pay the costs and fees if, for example, the court decides the suit was frivolous.

For further information about this statement or about ERISA rights, you may contact the nearest area office of the Employee Benefits Security Administration, United States Department of Labor, listed in the telephone directory, or the Division of Technical Assistance and Inquiries, Employee Benefits Security Administration, U.S. Department of Labor, 200 Constitution Avenue, N.W., Washington, DC 20210.

You may also obtain certain publications about your rights and responsibilities under ERISA by calling the publications hotline of the Employee Benefits Security Administration.

Plan Administrator

For all the Capital One benefit plans, the Benefits Committee of Capital One Financial Corporation is the Plan Administrator. The Plan Administrator's discretionary powers include, but are not limited to, the power to:

- Administer the plans and/or designate others to administer the plans;
- Make and enforce such rules and regulations as deemed necessary or proper for the efficient plan administration;
- Interpret the plans;
- Decide all questions concerning plans, including the right to remedy possible ambiguities, inconsistencies or omissions by general rule or particular decision;
- Determine the eligibility of any person to participate in plans and the entitlement of any person to any plan benefits; and
- Appoint other persons to render it advice and assist it in administering the plans, and designate other persons to carry out any of its responsibilities under the plans.

Any interpretation, decision or determination made by the Plan Administrator in good faith shall be final and binding on all persons claiming benefits under the plans.

You may reach the Plan Administrator at:

Plan Administrator
Benefits Committee c/o HR Benefits
Capital One Financial Corp.

15000 Capital One Drive
Richmond, VA 23238

804-284-1000

Plan Information

Plan Name	Capital One Financial Corporation Associate Savings Plan
Plan Type	Defined contribution retirement plan intended to be an ERISA 404(c) plan.
Plan Year	January 1 to December 31
Plan Number	002
Plan Sponsor	The plan sponsor for the Capital One benefit plans is: Capital One Financial Corporation 1680 Capital One Drive McLean, VA 22102 703-720-2500
Plan Administrator	The Plan Administrator is the Benefits Committee, as described in "Plan Administrator" on page .
Employer Identification Number	54-1719854
Agent for Service of Legal Process	The agent for service of legal process is: Matthew Cooper Capital One Financial Corporation 1680 Capital One Drive McLean, VA 22102 Service of legal process also may be made upon the Plan Administrator or Plan Trustee.
Type of Administration	The Plan is administered by Capital One. Certain administrative duties are performed by either administrative service companies who have entered into contracts with Capital One or individual insurance companies. (See "Third Party Administrator," below.)
Plan Funding	All contributions to the Associate Savings Plan are held in a separate trust fund by the trustee, and all benefit payments are made only from that trust fund.
Plan Trustee	Plan assets are held in trust by the trustee at: Fidelity Management Trust Company 82 Devonshire Street Boston, MA 02109 800-854-4015
Third Party Administrator	Capital One has engaged the services of the following third-party administrator: Fidelity Management Trust Company 82 Devonshire Street Boston, MA 02109 800-854-4015